

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Reese Crispen	Team: Squad #08	CCRB Case #: 201500688	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 01/29/2015 8:55 AM	Location of Incident: Eastchester Road and Rhineland Avenue	18 Mo. SOL 7/29/2016	Precinct: 49
Date/Time CV Reported Thu, 01/29/2015 4:39 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 01/29/2015 4:39 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Miguel Pierre	09253	944897	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Miguel Pierre	Abuse: PO Miguel Pierre threatened to arrest § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On January 29, 2015, at approximately 8:55 a.m., § 87(2)(b) was driving to work southbound along Eastchester Road, in the vicinity of the cross-street Rhinelander Avenue, in the Bronx. After being pulled over by PO Miguel Pierre for committing an improper lane change, PO Pierre threatened to arrest § 87(2)(b) (Allegation A).

Mediation, Civil, and Criminal Histories

§ 87(2)(b) declined mediation.

On March 3, 2015, a FOIL request was submitted to the NYC Comptroller's Office to determine if § 87(2)(b) filed a Notice of Claim in regards to this incident. The results will be included in this case file upon receipt (encl. 45).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

PO Pierre has been a member of the service for seven years and there are no substantiated CCRB allegations against him. He has two previous complaints (201205947 and 201213761) where he was alleged to have spoken discourteously during traffic stops (encl. 1).

§ 87(2)(b) has filed one other CCRB complaint: § 87(2)(b)

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Miguel Pierre threatened to arrest § 87(2)(b)

It is undisputed that § 87(2)(b) requested to speak with PO Pierre's supervisor and that PO Pierre threatened to arrest § 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that she was stopped by PO Pierre for allegedly making an unsafe lane change. PO Pierre approached her car window and she initiated the conversation by saying hello. PO Pierre then asked her if she knew what she did wrong, and she said that she did not. Regardless, she immediately retrieved her license and registration from her purse and handed them to PO Pierre after being asked. PO Pierre then walked back to his vehicle to write a summons.

After PO Pierre returned to § 87(2)(b)'s vehicle, he asked her again if she knew what she did wrong, and she once again said that she did not. The back-and-forth developed into an argument, which culminated in PO Pierre asking her if she wanted him to call his supervisor to the scene, since the stop had taken place directly adjacent to the 49th Precinct stationhouse. Dr.

§ 87(2)(b) agreed that she would like to speak with his supervisor, yet PO Pierre immediately retracted the offer, saying, “I’m not calling out my supervisor,” and, “If you talk back to me, and get out and go talk to my supervisor, I’m going to pull you in and lock you up in my cell” (encl. 11).

PO Pierre testified that § 87(2)(b) requested to speak with his supervisor, but that he responded to her saying that she was entitled to do so once he issued her the summons and she was free to leave. § 87(2)(g) After requesting license and registration from § 87(2)(b) she refused until she was instructed to do so three or four times. PO Pierre threatened her with arrest because, if she did not provide her license and registration after a valid traffic stop, he would need to bring her back to the stationhouse in order to identify her. Following the threat, she provided her license and registration (encl. 20). He did not threaten to arrest her if she spoke with his supervisor and did not threaten to arrest her if she talked back to him (encl. 22).

§ 87(2)(g) It is, therefore, recommended that **Allegation A be closed as unsubstantiated.**

Pod: 8

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date